

held that, as the chapel was for the exclusive benefit of the school, the trustees had no power to apply the revenues of the charity towards enlarging the chapel for the better accommodation of the inhabitants (*e*).

11. **Chapel pulled down.**—The trustees for maintaining a *chapel* had pulled down the edifice, converted the burial ground to profane purposes, carried the bell to the market-place, put the pews in the parish church, and employed the stones of the chapel for repairing a bridge. Sir T. Plumer said, “It was an enormous breach of trust, and such as could not have been expected in a Christian country;” and directed an inquiry what emoluments had come to the hands of the trustees on account of the breach of trust, and what would be the expense of restoring the chapel to the state in which it stood at the time of its destruction (*f*).

12. **Charity in aid of rates.**—A fund in aid and relief of “*poor citizens* who often were grievously burdened by the imposts and taxes of the city” was held not to be applicable to the payment of rates and other expenses of the city that would otherwise have been raised by public levies and impositions; nor to be distributable to such of the poor as received parish relief, for that would be so much in aid of the ratepayers; but ought to have been administered for the exclusive benefit of the poor (*g*).

13. **Poor of a parish.**—Where a trust is created for the “*poor of a parish*,” it was for a long time doubted what class of persons was entitled to the benefit. Lord Eldon thought, that the fund should be *administered [*532] without reference to parochial relief; for assistance might be given to a pauper without exonerating the rich from their usual contribution to the rates—to the relief, which the law had provided, further relief might be added,

(*e*) Attorney-General v. Earl of Mansfield, 2 Russ. 501.

(*f*) *Ex parte Greenhouse*, 1 Mad. 92; reversed on technical grounds, 1 Bligh, N. S. 17.

(*g*) Attorney-General v. Corporation of Exeter, 2 Russ. 45; S. C. 3 Russ. 395; and see Attorney-General v. Wilkinson, 1 Beav. 372; Attorney-General v. Bovill, 1 Ph. 702; Attorney-General v. Blizard, 21 Beav. 233.